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Resisting Global Terrorism

In this chapter, I wish to take the just war tradition in its developed form (as both a moral and legal tradition) and look at the particular moral and legal challenges raised by the unusual character of the current “war on terrorism.”

The nature of this conflict raises issues and challenges that have not been faced by the just war tradition in a number of centuries. Consequently, the current letter of the law may prove to be less relevant to guiding our thinking about this challenge than the older and deeper philosophical and religious roots of the just war tradition.

Terrorism and the current just war framework

The just war framework, as we have seen, concerns judgment whether particular political circumstances justify recourse to military force. The tradition inherits from its Christian roots a strong bias against the use of force and a presumption that means short of use of force are in general preferable to military solutions to political problems. But it balances that bias with another: the presumption that evil should be punished and that stability and order must be maintained, by force if necessary.

The just cause aspect of *jus ad bellum* is meant to establish a threshold of gravity of offense sufficient to justify use of military force. As this tradition has developed, various things have been

counted as just causes. For example, in the Middle Ages “offended honor” was considered a just cause. Because the intent of the tradition is to restrict the use of force, there has been a tendency, as the tradition has developed, to narrow the range of just causes. In its contemporary form, just cause is largely restricted to “aggression received.” The simplest form of aggression would be when one country’s tanks are on the wrong side of the border.

The requirement of right authority was initially meant to put a limit on private wars not authorized by a legitimate government. This was, of course, a real problem in the Middle Ages, since local aristocracy had private armies at their disposal; and it is becoming a real problem again as nonstate actors such as *Al Qaeda* also possess military power uncoupled from responsible governance structures.

In theory the creation of the UN restricts right authority to the Security Council of the United Nations except for absolutely and unambiguously defensive wars. The intent of the creation of the United Nations was to restrict warfare as a normal means of international resolution of dispute. In theory it ceded to the Security Council the authority to make determinations that conditions were threats to international peace and stability worthy of redress by military means. Naturally, member states of United Nations retain the right of self-defense, but, as just indicated this was restricted to unambiguous circumstances.

Within the United States, there are questions that remain about where right authority lies. As we all know, the Constitution provides that the president be the commander-in-chief of the armed forces of the United States, while reserving the power to declare war to the Congress. For much of our history, this division made sense, since the presumption was that there would be no large standing military force and that Congress would have to authorize money to raise an army to fight any significant war.

But the historical abnormality of the cold war left us with a different situation. Due to the urgency of the cold war threat and the need to have standing military forces ready to respond promptly, the president was left with a standing military force that could be deployed on presidential authorization alone.

Since the Vietnam War, Congress has attempted to restrain this unilateral authority of the president through the War Powers Act, but all presidents have held that the War Powers Act is unconstitu-

tional, and neither the executive nor the Congress has chosen to force the issue by taking it to the Supreme Court.

Justification of the recourse to military force also involves a global proportionality assessment. This is a judgment that the issue to be resolved is in some reasonable proportion to the amount of damage anticipated by the use of military means.

The reasonable-hope-of-success criterion is essentially a matter of common sense. Since the use of military force will inevitably involve destruction of property and probably cause deaths, any morally serious defense of use of force must be able to guarantee that such use is likely to be effective. Otherwise, the destruction is purely gratuitous.

The requirement that use of force be the last resort is the final criterion of *jus ad bellum*. The essential idea here is that if there are nonmilitary means of redressing the fundamental issue, they should be tried. This is not, of course, an iron-clad requirement that everything conceivable be tried. Instead, it is a common sense requirement that things that show any realistic promise of being successful should be tried. You will recall that this was the central debate in anticipation of the Gulf War: Would another trip by the Russians be effective in getting Iraq to withdraw from Kuwait? Was further UN negotiation likely to be effective?

The other wing of just war theory is *jus in bello*. Here we are invited to make judgments about how war is conducted. The central moral principles here are discrimination and proportionality. Discrimination concerns the accuracy of weapons and targeting. The idea here is that some individuals and targets are legitimate military targets, while ordinary civilians and infrastructure are not.

Military planners are morally obligated to choose weapons and tactics that as far as possible allow attack on the military targets while avoiding damage and destruction to the civilian populace.

Proportionality captures the common sense requirement that the amount of destruction visited on a particular object or site is proportional to the military value of the object.

Application of These Criteria to the War on Terrorism

While we have seen repeatedly in earlier chapters that these criteria have been the mainstays of just war thinking for many

centuries now, there are some distinct conceptual problems in applying this tradition to the current engagement against terrorist organizations worldwide.

The first and most obvious difficulty is that the just war tradition since the Peace of Westphalia in 1648 has been organized around the principle of sovereign states. Westphalia allowed international peace in Europe by allowing each state to control its own internal affairs. In practice, this meant that Catholic states would persecute Protestants, and Protestant states would persecute Catholics. International stability was to be bought, as we would say in modern parlance, at the price of human rights.

Accordingly, only states can truly wage war against one another. Therefore, when we use the term “war on terrorism,” we are not using language precisely. Of course, in the case of Afghanistan, the fact that the Taliban government of Afghanistan was unwilling to hand over the al Qaeda representatives within its territory made it possible to conduct war against the *de facto* government of Afghanistan, as well as against the terrorist groups whom they harbored.

But as our engagements with al Qaeda extend globally, the character of that engagement will change dramatically with reference to the various states in whose territory they may be found. Some states, such as Georgia, may invite American forces to operate with their own forces to suppress terrorist organizations they have internal reasons for wanting to suppress. Some states, such as Pakistan, may have governments willing to act to suppress and locate al Qaeda representatives, but at considerable domestic political risk to their own stability. Some states may be too weak, even if willing, to act against al Qaeda; indeed, some may actively support or covertly be willing to tolerate terrorist presence in their territories.

Given that complex picture, how do we begin to think about our relationship to these various situations? The modern theory of state sovereignty would counsel that every state is free to do within its own territory whatever it chooses. Presumably, that freedom includes harboring individuals and groups that are unpalatable to other states. But clearly, it is our intent to pursue al Qaeda wherever we may find it, even in the face of resistance or noncooperation from the government in whose territory its

members may reside. What justification in terms of just war can there be for such interventions?

Obviously, there is no great ethical or legal question involved with states that choose to cooperate in our efforts. They are clearly acting within the scope of their sovereignty when they invite us to assist them in locating and defeating terrorist groups within their territory.

But what about those states that do not cooperate, either from inability or from unwillingness? The standard of Westphalian respect for territorial integrity and sovereignty would argue strongly against granting the United States or even a coalition the right to intervene in such circumstances—at least in the absence of an authorizing resolution from the UN.

But it may be that the era of Westphalian sovereignty is fading. Recall that the moral tradition of just war is much older and more robust than its particular instantiation in formal international law.

Recall that in his “Letter to Count Boniface,” Augustine urges the Roman military commander Boniface to see his military service in resistance to barbarian invasion as a mournful but necessary duty. The necessity of fighting has been imposed by those who have disrupted the relative peace and order of the Roman Empire, and not by Boniface.

Writing from his home in North Africa to this senior military officer after Rome itself has already fallen, Augustine invokes Jesus’s saying, “Blessed are the peacemakers,” and applies it to the conscientious soldier who, by using arms against the barbarian, is attempting to restore the peace that has been broken by invasion.

The temporal peace Augustine urges Boniface to restore is not, by any stretch of the imagination, the perfect peace of the City of God. It is the lesser temporal order of the Human City—a “tranquility of order” in which there are still many who are miserable, but within an overall framework of order. Augustine grants that individuals in that order may be wretched but says “they would . . . be far more wretched if they had not that peace which arises from being in harmony with the natural order of things.”¹ Augustine realizes that, in the conflict between the barbarians and the Roman army in his lifetime, the stakes are high: the survival or collapse of civilization as his world had known it. He realizes that

what would follow if Rome were defeated (and what did follow, since it was!), would be not just a rearrangement of the individual miseries of his world. What would follow would be the Dark Ages, and centuries would pass before even a flicker of civilization would reappear in the Western Roman Empire.

What is the relevance of this ancient discussion to the current Global War on Terrorism? Like Augustine, we are now dealing with threats and challenges that do not fit the model of state sovereignty that has defined the Westphalian world for the past four centuries. What is threatened by al Qaeda is not captured in a conceptual model that thinks of wars as conflicts between states, or in which what is at stake is the prospering or survival of a particular state's political order or territory.

If al Qaeda's fondest hopes were realized, what would fall would not be the United States of America, but rather the entire world order created over centuries by the forces of capitalism, Enlightenment rationality, modern science, and political democracy.

It is fashionable, of course, to criticize the miseries created for many groups and nations by that world order. There are, indeed, many valid and important questions to be raised about the effects of globalized trade, the World Trade Organization, or the spread of American culture across the planet. And it is no more of the essence of the argument to idealize our civilization than it would have been for Augustine to have pretended that Rome ruled a world of sweetness and light. Moral seriousness requires, instead, asking, "If this civilization falls, what comes next?"

There is always room for reform and change under the umbrella provided by Augustine's "tranquility of order." The sober assessment of the situation asks not about the perfection of order, but about the cost of its collapse. One intellectual disease of much of modern liberalism and many a modern university is a kind of moral utopianism that one-sidedly dwells on the deficiencies and injustices of existing civilization.

Such a perspective neglects entirely to balance moral criticism of imperfections with an equivalent recognition of the value of order. Such thinking is then squeamish about the reality that such order is always maintained by power, often in ways that are less than perfect or ideal.

Such moral utopianism fails entirely to provide a moral and conceptual framework within which real-world political decisions

can be made. One finds such views, for example, in perspectives that attribute responsibility for the attacks of September 11 exclusively or primarily to elements of American policy and conduct—while not recognizing the absolutely essential role of America and her power in maintaining what passes for “tranquility of order” in the modern world.

When one contemplates an absence of that order, few can improve on Thomas Hobbes’s description:

Whatsoever therefore is consequent to a time of Warre, where every man is Enemy to every man; the same is consequent to the time, wherein men live without other security, than what their own strength, and their own invention shall furnish them withal. In such condition, there is no place for Industry; because the fruit thereof is uncertain: and consequently no Culture of the Earth; no Navigation, nor use of the commodities that may be imported by Sea; no commodious Building; no Instruments of moving, and removing such things as require much force; no Knowledge of the face of the Earth; no account of Time; no Arts; no Letters; no Society; and which is worst of all, continuall feare, and danger of violent death; And the life of man, solitary, poore, nasty, brutish, and short.²

What I am suggesting is that we may well be at one of those historical moments when a real shift in our thinking is required. It is not the just war framework of the post-Reformation Westphalian order that provides the deepest insight to our circumstance—although the fact that black letter international law presupposes that order makes harmonizing our challenges with that form of the just war tradition necessary and important. But the terrorist challenges are not fundamentally challenges to particular states, but rather to civilization itself as we know it.

For all the brutality of its foundations and conduct, the Pax Romana was, for Augustine, clearly an order worth defending; no less, the Pax Americana in our time and place. Indeed, a striking fact about the early Christian church is that, for all its ambivalence about living under Roman rule, there was never the hint of a doubt that the stability, safety, and ease of travel made possible by Roman power was a gift of God. Similarly, it does not require much imagination to envision the human consequences of a collapse of the

complex and interlocking structures of the modern international system. Of course, there is plenty of misery in our world, but it pales in comparison to the misery that would arise from an abrupt break or collapse in the structures that keep it intact.

The most fundamental point of the evolution of a just war perspective in the Christian church was a resolute embrace of the realm of practical politics as a locus of moral seriousness. The temptation to flee the world of moral ambiguity and shades of gray is, of course, a powerful one—a tug no morally serious person can avoid feeling. But it is, from the core of the just war perspective, a temptation to be resisted in favor of the hard, messy, and (as Augustine put it) “mournful” work of sustaining relative goods in the face of greater evils.